

Part 8

Saving and Validation

54. Saving

Notwithstanding the repeal of the Buildings Ordinance 1935 (18 of 1935), the provisions of sections 110 to 126 of that Ordinance set out in Schedule 2 hereto shall continue in operation until such time as they are replaced by regulations enacted under section 38 or by any other enactment expressed to be in substitution for the provisions of the said sections: *(Amended 16 of 1966 s. 11; 16 of 2011 s. 30)*

Provided that any reference to an architect in the said sections 110 to 126 shall be taken as references to an authorized person. *(Added 52 of 1974 s. 14)*

55. Validation

- (1) Any public officer whom the Director of Building Development purported to authorize for the purposes of section 2(2) of this Ordinance at any time before the commencement of the Buildings (Amendment) (No. 2) Ordinance 1985 (73 of 1985) shall be deemed to have been validly authorized, notwithstanding that the public officer was not an officer of the Building Development Department. *(Amended 42 of 1992 s. 10)*
- (2) Every act or thing done by the Building Authority or by any public officer authorized by him in writing in that behalf before the commencement of the Buildings (Amendment) Ordinance 1992 (42 of 1992) that would have been lawful if section 28 (as amended by section 3(a) of that Ordinance) had been in force at the time when it was done is hereby validated

and declared to have been lawfully done by him. (*Added 42 of 1992 s. 10. Amended 77 of 1992 s. 5*)

- (2A) Every act or thing done by the Building Authority or by any public officer authorized by him in writing in that behalf, before the commencement of the Buildings (Amendment) (No. 2) Ordinance 1992 (77 of 1992) that would have been lawful if—

- (a) section 28(7)(a); and
- (b) section 28(7)(c) (in so far as it relates to the power to carry out or cause to be carried out such drainage works as the Building Authority considers necessary or expedient but as if there was no requirement to have regard to the findings of an investigation),

had been in force at the time when it was done is hereby validated and declared to have been lawfully done by him. (*Added 77 of 1992 s. 5*)

- (3) Every act or thing done by any officer of the Drainage Services Department before 21 November 1991 that would have been lawful if Schedule 4 (as amended by the resolution of the Legislative Council (L.N. 406 of 1991)) had been in force and if the act or thing done had been authorized by the Director of Buildings and Lands at the time when it was done is hereby validated and declared to have been lawfully done by the officer. (*Added 42 of 1992 s. 10. Amended 16 of 2011 s. 31*)

(73 of 1985 s. 4 incorporated)